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CASE #	CASE NAME	HEARING NAME
MCC1900422	HAACKE VS SHEA	MOTION TO TAX COSTS

Tentative Ruling: Motion to Tax Costs granted in part. Costs are taxed to \$743.50.

Request for Judicial Notice: In support of the Reply, Defendant requests judicial notice of the Court's Notification of Estimate of Costs and the Court's order denying Plaintiff's Motion for Attorney's Fees. These documents may be judicially noticed pursuant to Evid. Code § 452(d), which permits judicial notice of court records.

Plaintiff's Evidentiary Objections:

Sustain

Overrule

Defendant's Evidentiary Objections: All of Defendant's objections are except Nos. 6 and 29.

On the Merits: Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP §1032(b).) CCP § 1033.5 expressly enumerates several items which are allowable as costs and other items that are not allowable. Allowable costs must be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (CCP §1033.5(c)(2); *Thon v. Thompson* (1994) 29 Cal.App.4th 1548.) CRC Rule 8.278(d) provides a list of recoverable costs on appeal. The items enumerated by Rule 8.278 are the only costs that may be recovered on appeal. (*Stratton v. Beck* (2018) 30 Cal. App. 5th 901, 910.)

A verified memorandum of costs constitutes prima facie evidence that the fees were reasonable. (*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1484.) It is not necessary for the prevailing party to attach bills, invoices or statements until the costs have been put in issue by a motion to tax, at which time supporting documents are required. (*Jones v. Dumrichob* (1998) 63 Cal. App. 4th 1258, 1267.) When the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761.) The mere filing of a motion to tax costs may be a proper objection to an item when the necessity of that item appears doubtful, or when it does not appear to be proper on its face; however, if the items appear to be proper, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred, and the burden of showing that an item is not properly chargeable or is unreasonable is upon the objecting party. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.)

Procedural Issues: Plaintiff argues that the Motion is untimely. A motion to strike or tax costs must be served and filed within 15 days after service of memorandum of costs. (CRC 3.1700(b)(1).) If a party serves the cost memorandum by mail within the state, the deadline for filing the motion is extended by five days as provided in accordance with CCP § 1013(a). (See CRC 3.1700(b)(1).) Plaintiff filed the MOC on March 16, 2026. According to the Proof of Service, the MOC was served by mail the same day to Ms. Robin J. Shea, P.O. Box 971 Sun City, CA. 92586. Counsel for Defendant was not served. (Decl. of Kim, ¶11.) "Whenever a document is required to be served on a party, the service must be made on the party's attorney if the party is represented." (CRC, Rule 1.21(a).)

Because Plaintiff failed to serve Defendant's attorney, the service was improper and the 15-day deadline never began to run. Therefore, the Motion is timely.¹

Attorney's Fees: Plaintiff requests \$12,624.00 pursuant to Form APP-013 for the fees on appeal, and \$66,146.48 pursuant to Form MC-010 for trial fees. Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) Attorney's fees based on statute may be fixed as follows: (i) upon a noticed motion, (ii) at the time a statement of decision is rendered, (iii) upon application supported by affidavit made concurrently with a claim for other costs, or (iv) upon entry of default judgment. (CCP § 1033.5(c)(5).) Under Rule 8.278(d)(2), unless the court of appeal orders otherwise, "an award of costs neither includes attorney's fees on appeal nor precludes a party from seeking them under rule 3.1702." Fees are not otherwise enumerated as recoverable costs under Rule 8.278. (*Stratton, supra*, 30 Cal. App. 5th at 910.)

On March 16, 2026, Plaintiff filed a Motion for Attorney's Fees which was denied by the Court. Plaintiff may not assert the same fees via MOC since the fees have not been fixed by motion. As such, these costs are stricken.

Reporter's Transcript: Pursuant to Form APP-013, Plaintiff seeks \$5,412.25 for the preparation of the reporter's transcript. A prevailing party may recover "[t]he amount the party paid for any portion of the record, whether an original or a copy or both. (CRC, Rule 8.278(d)(1)(B).) Defendant argues that Plaintiff obtained a fee waiver for the trial transcripts. Plaintiff asserts that the waiver applied only to the clerk's transcript, but not the reporter's transcript, which is substantiated by the Court's Notification of Estimate of Costs. (RJN, Ex. A.) The estimate for the reporter's transcript was \$743.50. (Id.) Plaintiff has not explained this discrepancy or produced any evidence showing the amount paid for the reporter's transcript. Therefore, the cost should be taxed to \$743.50.

Other Costs on Appeal: Plaintiff requests \$100.00 for the production of additional evidence and \$100 for transmitting, filing, and serving of record, briefs, and other papers. Rule 8.278 provides for the recovery of costs to produce additional evidence and cost to notarize, serve, mail and file the record, briefs and other papers. (CRC Rule 8.278(d)(1)(C) and (D).) Again, Plaintiff failed to produce any evidence to substantiate these costs despite the challenge from Defendant. It is not clear what other evidence was produced or briefs were filed or served. Accordingly, these costs should be taxed.

Models, Enlargements, and Photocopies of Exhibits: Plaintiff seeks \$100 for models, enlargements or photocopies in connection with the trial. Models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact. (CCP § 1033.5(a)(13).) Because the statute only permits recovery of costs for exhibits that were helpful to the trier of fact, costs are not authorized for exhibits not used at trial. (*Ladas v. California State Automobile Association* (1993) 19 Cal. App. 4th 761, 775.) Photocopying charges, except for exhibits are not permitted. (CCP § 1033.5(b)(3).) Again, the problem is that Plaintiff did not produce any evidence in support of the request. It is not clear whether the models, enlargements or photocopies were used at trial. Accordingly, the costs should be taxed.

Overall, due to Plaintiff's failure to produce evidence in support of the costs challenged by Defendant, the Motion to tax is granted in part. Costs should be taxed to \$743.50.

¹ Counsel filed a Motion to Be Relieved as Counsel on January 7, 2026, but the Motion was denied without prejudice on February 25, 2026.